Section 8: Legal & Policy

LEGAL STATEMENT

Unless otherwise indicated, EvalzNow © is the intellectual property and it is the original expression of Ricky D. Butler (the Creator). All source codes, database builds, functionality, designs, logos, theories, proprietary techniques, utilities, modules, and methodologies are owned, are controlled, and are licensed to the Creator under applicable copyright laws and unfair competition laws of the United States, foreign jurisdictions, and international conventions – whichever is more severe.

All rights reserved. No part of this application including menu modules or works associated with the development of the application may be reproduced, may be distributed, may be rewritten, may be edited, may be modified, or may be transmitted in any form or by any means, including photocopying, recording, or other electronic or mechanical methods, without the prior written consent of the Creator. This includes all modules, any derivative works, any parallel works, reverse-engineered works, or seemingly similar works of any form of any industry-related field – public or private.

The aforementioned restrictions above also apply to the novel concept of Competency Accounting, which is an innovative idea that belongs to Ricky D. Butler, the mathematical modeling schemes, the use of interactions, and other documented items. These works cannot be applied in any manner, direct or indirect, without the written approval of the Creator. Any unlawful use of the concept of Competency Accounting or documented items is also subject to applicable copyright laws and unfair competition laws of the United States, foreign jurisdictions, and international conventions – whichever is more severe.

For Fair Use cases, any entity using copyrighted material for, but not limited to, criticism, commentary, news reporting, teaching, scholarship, research, or informative purposes must attribute the work to the Creator. The attribution/permission is required regardless of the non-commercial intent, the educational intent, the scientific intent, or the historical intent, even if the purpose is transformative. Please reach out to the EvalzNow team for general inquiries or official requests.

End Users, however, are free to use data outputs, data analytics, data extractions, and data reports at their lawful discretion.

All Users accept the legal statement, the policies, and any listed terms & conditions upon using EvalzNow.

PRIVATE POLICY

This Privacy Policy describes our policies and procedures on the collection, use, and disclosure of user information when the user uses the Service. We use user data to provide and to improve the Service. By using the Service, the user agrees to the collection and the use of information in accordance with this Privacy Policy.

INTERPRETATION

The words of which the initial letter is capitalized have meanings defined under the following conditions. The following definitions shall have the same meaning regardless of whether they appear in singular or in plural.

DEFINITIONS

For the purposes of this Privacy Policy:

Account means a unique account created for You to access our Service or parts of our Service.
Affiliate means an entity that controls, that is controlled by, or that is under common control with a party, where "control" means ownership of 50% or more of the shares, equity interest, or other securities entitled to vote for election of directors or other managing authority.
Application means the software program provided by the Company to You on any device, named EvalzNow
Company (referred to as either "the Company", "We", "Us" or "Our" in this Agreement) refers to the EvalzNow developmental entity assigned to by Ricky Butler (creator).
Cookies are small files that are placed on Your computer, mobile device, or any other device by a website, containing the details of Your browsing history on that website among its many uses.
Country refers to the country where the Application is applied.
Device means any device that can access the Service such as a computer, a cellphone or a digital tablet.

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Personal Data is any information that relates to an identified or identifiable individual, user representative, registered client, or individual receiving/obtaining the Service.
Service refers to the Application or the Website or both.
Service Provider means any natural or legal person who processes the data on behalf of the Company. It refers to third-party companies or individuals employed by the Company to facilitate the Service, to provide the Service on behalf of the Company, to perform services related to the Service or to assist the Company in analyzing how the Service is used.
Third-party Service refers to any website through which a User can log in or create an account to use the Service.
Usage Data refers to data collected automatically, either generated by the use of the Service or from the Service infrastructure itself (for example, the duration of a page visit).
Website refers to any domain hosting the EvalzNow software.
You means the individual accessing or using the Service, or the company, or other legal entity on behalf of which such individual is accessing or using the Service, as applicable.

TYPES OF DATA COLLECTED

PERSONAL DATA

While using Our Service, We may ask You to provide Us with certain personally identifiable information that can be used to contact or to identify You or a Client account.

USAGE DATA

Usage Data, which is owned by respective clients and site visitors, is minimally collected or stored when using the Service.

Usage Data may include information such as Your Device's Internet Protocol address (e.g. IP address), browser type, browser version, the pages of our Service that You visit, the time and date of Your visit, the time spent on those pages, unique device identifiers and other diagnostic data.

When You access the Service by or through a mobile device, We collect information automatically, including, but not limited to, the type of mobile device You use, Your mobile device's unique ID, the IP address of Your mobile device, Your mobile operating system, the type of mobile Internet browser You use, unique device identifiers and other diagnostic data.

We may also collect information that Your browser sends whenever You visit our Service or when You access the Service by or through a mobile device.

TRACKING TECHNOLOGIES AND COOKIES

We may use Cookies and similar tracking technologies to track the activity on the website accompanying Our Service. Tracking technologies used are beacons, tags, and scripts to collect and track information and to improve and to analyze Our Service as well as server traffic loads. The technologies We use may include:

Cookies or Browser Cookies. A cookie is a small file placed on Your Device. You can instruct Your browser to refuse all Cookies or to indicate when a Cookie is being sent. However, if You do not accept Cookies, You may not be able to use some parts of our Service. Unless you have adjusted Your browser setting so that it will refuse Cookies, our Service may use Cookies.

Flash Cookies. Certain features of our Service may use local stored objects (or Flash Cookies) to collect and store information about Your preferences or Your activity on our Service. Flash Cookies are not managed by the same browser settings as those used for Browser Cookies and they can be deleted at any time.

Web Beacons. Certain sections of our Service and our emails may contain small electronic files known as web beacons (also referred to as clear gifs, pixel tags, and single-pixel gifs) that permit the Company, for example, to count users who have visited those pages or opened an email and for other related website statistics (for example, recording the popularity of a certain section and verifying system and server integrity).

Cookies can be "Persistent" or "Session" Cookies. Persistent Cookies remain on Your personal computer or mobile device when You go offline, while Session Cookies are deleted as soon as You close Your web browser.

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USE OF YOUR PERSONAL DATA

The Company may use Personal Data for the following purposes:

- **To provide and to maintain our Service**, including to monitor the usage of our Service.
- **To manage Your Account and to manage Your registration as a user of the Service**. The Personal Data You provide can give You access to different functionalities of the Service that are available to You as a registered user. All functionalities and roles are controlled by authorized admins.
- **For the performance of a contract:** The development, compliance, and undertaking of the purchase contract for the products, items, or services You have purchased or of any other contract with Us through the Service.
- **To contact You:** To contact You by email, telephone calls, SMS, or other equivalent forms of electronic communication, such as a mobile application's push notifications regarding updates or informative communications related to the functionalities, products, or contracted services, including the security updates, when necessary or reasonable for their implementation.
- **To provide You** with news, special offers, and general information about other goods, services and events which we offer that are similar to those that you have already purchased or enquired about unless You have opted not to receive such information.
- **To manage Your requests:** To attend and to manage Your requests to Us – technical and non-technical.
- **For business transfers:** We may use Your information to evaluate or conduct a merger, divestiture, restructuring, reorganization, dissolution, or other sale or transfer of some or all of Our assets, whether as a going concern or as part of bankruptcy, liquidation, or similar proceeding, in which Personal Data held by Us about our Service users is among the assets transferred.
- **For other purposes**: We may use Your information for other purposes, such as data analysis, identifying usage trends, determining the effectiveness of our promotional campaigns, and to evaluate and to improve our Service, products, services, marketing, ranking, indexing, and customer experience.

We may share Your personal information in the following situations:

- **With Service Providers:** We may share Your personal information with Service Providers to monitor and to analyze the use of our Service, to contact You.
- **For business transfers:** We may share or transfer Your personal information in connection with, or during negotiations of, any merger, sale of Company assets, financing, or acquisition of all or a portion of Our business to another company.
- **With Affiliates:** We may share Your information with Our affiliates, in which case we will require those affiliates to honor this Privacy Policy. Affiliates include Our parent company and any other subsidiaries, joint venture partners, or other companies that We control or that are under common control with Us.
- **With Your consent**: We may disclose Your personal information for any other purpose with Your consent.
- **With legal authorities**: We comply with all court orders and legal investigations.

TRANSFER OF YOUR PERSONAL DATA

Your information, including Personal Data, is processed at the Company's operating offices and in any other places where the parties involved in the processing are located. It means that this information may be transferred to — and maintained on — computers located outside of Your state, province, country or other governmental jurisdiction where the data protection laws may differ than those from Your jurisdiction.

Your consent to this Privacy Policy followed by Your submission of such information represents Your agreement to that transfer.

The Company will take all steps reasonably necessary to ensure that Your data is treated securely and in accordance with this Privacy Policy and no transfer of Your Personal Data will take place to an organization or a country unless there are adequate controls in place, including the security of Your data and other personal information.

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DISCLOSURE OF YOUR PERSONAL DATA

BUSINESS TRANSACTIONS

If the Company is involved in a merger, acquisition or asset sale, Your Personal Data may be transferred. We will provide notice before Your Personal Data is transferred and becomes subject to a different Privacy Policy.

LAW ENFORCEMENT

Under certain circumstances, the Company may be required to disclose Your Personal Data if required to do so by law or in response to valid requests by public authorities (e.g. a court or a governmental agency).

OTHER LEGAL REQUIREMENTS

The Company may disclose Your Personal Data in the good faith belief that such action is necessary to:

- Comply with a legal obligation
- Protect and defend the rights or property of the Company
- Prevent or investigate possible wrongdoing in connection with the Service
- Protect the personal safety of Users of the Service or the public
- Protect against legal liability

SECURITY OF YOUR PERSONAL DATA

The security of Your Personal Data is important to Us, but remember that no method of transmission over the Internet, or method of electronic storage is 100% secure. While We strive to use commercially acceptable means to protect Your Personal Data, We cannot guarantee its absolute security.

We may update Our Privacy Policy from time to time. We will notify You of any changes by posting the new Privacy Policy on this page.

We will let You know via email and/or a prominent notice on Our Service, prior to the change becoming effective and update the "Last updated" date at the top of this Privacy Policy.

You are advised to review this Privacy Policy periodically for any changes. Changes to this Privacy Policy are effective when they are posted on this page.

CONTACT US

If you have any questions about this Privacy Policy, please reach out to the EvalzNow team.

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